

United States Court of Appeals for the Fourth Circuit

Panel Opinion Dismissing Appeal and Remanding

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 10 — Decided June 8, 2026

Before a unanimous three-judge panel. Opinion by the Court.

Asterglen Freight Software, Inc. appeals a partial judgment dismissing its contract claim against Copper Kestrel Logistics, LLC. The district court granted Asterglen's motion under Federal Rule of Civil Procedure 54(b) and directed entry of a separate judgment, but neither the order nor the judgment expressly determines that there is no just reason for delay. Meanwhile, Asterglen's interference claim against Meridian Silt Holdings, LLC and Copper's amended counterclaim remain unresolved.

Rule 54(b) makes the express determination a condition of finality when a judgment disposes of fewer than all claims. A party's request for that determination cannot replace the district court's judicial act, and a separate judgment that omits it cannot cure the order. We therefore lack jurisdiction under 28 U.S.C. § 1291. We dismiss the appeal and remand the matter. We do not reach the contract merits and do not vacate the district court's January 12, 2026 partial-summary-judgment order.

This disposition is limited to the appealability of the papers entered on February 4. It neither decides that certification could never be appropriate nor directs the district court to enter a different order. The unresolved claims remain subject to that court's management, and the parties retain their positions concerning any later final judgment or properly supported certification.

I. The parties and Pilot License

Asterglen develops and licenses BeaconRoute freight-routing software. Copper operates freight terminals, and Meridian provides integration services. On April 15, 2024, Asterglen and Copper signed a Pilot License authorizing 12 terminals. JA42–54. The agreement provided a written change process for expanded scope and controlled credentials, testing, operational use, and termination.

Section 9.2 states that before termination for a material breach or a demand for breach damages, the asserting party must provide written notice describing the breach and allow fifteen calendar days to cure. The parties agree that the clause contains that sequence. They dispute how it applies to the events that followed and whether conduct Asterglen describes as completed unauthorized use could be remedied prospectively.

Copper proposed adding 29 terminals on June 3. JA55–59. Asterglen did not sign the proposal. Its June 10 response allowed a controlled load test under written conditions and preserved the 12-terminal boundary pending a completed change. JA60–64. Meridian undertook integration work under a June 14 statement of work with Copper. JA65–71. By July 1, the provisioning ledger listed 41 identifiers corresponding to the original 12 and proposed 29. JA72–78. The parties dispute what uses those technical preparations permitted.

II. July events and competing positions

Representatives of Asterglen, Copper, and Meridian spoke on July 8, 2024. Their contemporaneous accounts differ. JA79–84. Copper understood Asterglen to permit current activity to continue while formal paperwork remained open. Asterglen understood the statement to permit only a bounded test under the June 10 conditions. Meridian understood that integration could proceed but did not claim authority to execute a license amendment for Asterglen. No signed change order followed.

Asterglen conducted an internal compliance audit on July 18 and concluded that activity exceeded the limited pilot. JA85–90. The audit was not delivered to Copper as a Section 9.2 notice and stated no cure deadline. On July 22, Asterglen disabled a shared credential, declared immediate termination, and demanded \$480,000. JA91–97. The writing allowed zero cure days.

Copper objected that Section 9.2 required notice and a fifteen-day opportunity and stated it could reduce the active set to 12 terminals within three business days. A later controlled exercise achieved a reduction within that period. JA137–144. Asterglen questioned whether the test replicated live conditions and maintained that prospective correction could not erase completed harm. Meridian continued technical work through July 25, which it described as orderly preservation and shutdown activity and Asterglen characterized as continued interference.

III. Claims and partial summary judgment

Asterglen filed this action in March 2025. Count I seeks \$480,000 from Copper for alleged use outside the written license. JA1–8. Count II seeks \$360,000 from Meridian for alleged interference with the Asterglen-Copper relationship. Copper pleaded and later amended a \$120,000 counterclaim arising from the July 22 disablement and alleged violation of the cure procedure. JA31–36. All parties disputed liability.

Copper moved for partial summary judgment on Count I only. JA151–170. It assumed for purposes of its motion that Asterglen could show activity beyond written authorization but argued that the failure to follow Section 9.2 barred Asterglen's selected remedies. Asterglen responded that the agreement did not make cure a shield against completed misuse and that disputed facts supported excuse. JA171–179. Meridian addressed evidence shared with Count II. JA180–185.

On January 12, 2026, the district court granted Copper's motion and dismissed Count I with prejudice. JA192–198. It concluded that the notice-and-cure sequence applied to immediate termination and contract damages, that earlier communications did not provide the required notice, and that the feasibility evidence defeated Asterglen's futility position. The court did not decide which July 8 account was accurate. It expressly left Count II and the amended counterclaim pending and acknowledged shared facts and possible setoff.

IV. Proceedings under Rule 54(b)

Asterglen moved for entry of partial final judgment. Its January 20 motion identified Count I as fully disposed of and asked the district court to determine expressly that there was no just reason for delay and direct a separate judgment. JA199–204. Asterglen addressed the relationship of claims, possible mootness, repeated review, Copper's counterclaim, setoff, and the equities. It contended that different elements and parties permitted immediate review of the contract ruling.

Appellees opposed certification. JA205–211. They emphasized that all claims involve the Pilot License, proposed expansion, 41 identifiers, July communications, audit, cure evidence, and resulting loss. They argued that the live counterclaim could affect net recovery and that immediate review risked repeated appellate consideration. Their opposition also stated that a bare grant or separate judgment could not substitute for the express determination required by Rule 54(b).

Asterglen replied and renewed its request for the exact determination. JA212–215. On February 4, the district court entered a one-page order. It stated that the court had reviewed the motion, opposition, reply, and record; granted the motion; directed the Clerk to enter a separate judgment on Count I; and preserved Count II and the counterclaim. JA216. The order does not state that there is no just reason for delay and contains no analysis of the certification factors.

V. Judgment, notice, and continuing district status

The Clerk entered a separate partial judgment on February 4. It awarded judgment to Copper on Count I and dismissed that claim with prejudice. JA220–221. It stated that Count II and the amended counterclaim remained active and that no whole-case closing was authorized. The judgment added no findings or determinations to the court's earlier orders.

Asterglen filed a Notice of Appeal on March 3. JA222–224. The notice was filed before the ordinary March 6 date calculated as thirty days after the separate judgment. It candidly stated that filing within that period did not independently establish finality. Asterglen later certified that no transcript was needed because the relevant motions were decided on written submissions. JA225–227. The district clerk certified its docket through March 20. JA228–234.

After briefing, we requested an updated status statement. Asterglen certified on June 5, with docket status confirmed through today, that Count II and Copper's amended counterclaim remain unresolved. PA52–53. The district court has not entered a whole-case judgment, amended the February 4 papers, or supplied the omitted determination. Thus, the same partial posture existed at notice, submission, and appellate judgment.

VI. Appellate jurisdiction and Rule 54(b)

We have jurisdiction over “final decisions” of the district courts. 28 U.S.C. § 1291. A decision ordinarily is final only when it ends the litigation on the merits and leaves nothing for the district court to do but execute the judgment. The January 12 order did not do so because two affirmative claims remained pending.

Rule 54(b) creates a limited route to finality in an action involving multiple claims or parties. It provides that a district court may direct entry of final judgment as to fewer than all claims or parties “only if the court expressly determines that there is no just reason for delay.” Otherwise, an order adjudicating fewer than all claims does not end the action and may be revised before entry of a judgment resolving all claims.

Our published decision in *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–76 (4th Cir. 2022), describes two steps. The district court first identifies an ultimate disposition of an individual claim. It then makes a case-specific no-just-reason determination, taking account of sound judicial administration and the equities. Certification is tilted against fragmentation. Findings concerning claim relationship, possible mootness, repeated review, counterclaims and setoff, and practical circumstances permit meaningful review for abuse of discretion.

VII. Count I received an ultimate disposition

The first Rule 54(b) step is satisfied. The January 12 order resolved the whole of Count I, not merely a theory or item of requested relief. It granted Copper's motion directed at the contract count and dismissed that count with prejudice. JA192–198. The partial judgment confirms that Asterglen takes nothing from Copper on Count I and that only the other claims continue. JA220–221.

The claims have distinct legal elements and party alignments. Count I asserts breach against Copper. Count II asserts interference against Meridian. The counterclaim seeks affirmative recovery by Copper from Asterglen. Factual overlap does not change the procedural fact that nothing remains for the district court to adjudicate within Count I, absent revision or appellate relief.

That conclusion does not establish appellate jurisdiction. Rule 54(b) requires both claim disposition and the express determination concerning delay. *Kinsale* treats those requirements separately. A district court may entirely resolve one claim yet decide that efficiency and fairness favor waiting for a whole-case judgment. Conversely, it may certify an appropriate completed claim, but only through the act the rule prescribes. We therefore turn to the February 4 language rather than infer finality from dismissal with prejudice alone.

VIII. The order lacks the express determination

The district court's order says the Rule 54(b) motion is granted and directs entry of a separate judgment. JA216. It does not say that there is no just reason for delay. It does not use equivalent language expressing a judicial conclusion that immediate review is warranted. And it does not analyze the relationship of claims, repeated-review risk, possible setoff, or equities.

Rule 54(b)'s text is direct: partial judgment may be directed “only if the court expressly determines” that delay lacks justification. The word “expressly” forecloses reliance on an unstated inference. The requirement ensures that the district court, which knows the continuing action, consciously exercises its discretion and creates a decision an appellate court can review.

We do not impose a formula for supporting findings or require mechanical discussion of every consideration in every case. But the foundational determination itself must appear. Here it does not. An appellate court cannot supply it based on its own view that the claims are sufficiently separate, nor can it assume the district court balanced contested factors merely because it directed judgment. Direction answers what document should be entered; determination answers why appellate review should proceed before the case ends. The entered order performs only the former act.

IX. Asterglen's motion cannot supply judicial language

Asterglen emphasizes that its motion requested the precise determination and briefed the relevant considerations. It asks us to read the district court's grant as adopting everything necessary to the relief requested. That argument has practical force but cannot be reconciled with the rule's requirement that the court expressly determine the issue.

A motion contains a party's proposed reasoning. A grant may accept requested relief without adopting every factual assertion or legal proposition in the filing. That is particularly true here, where Appellees disputed the certification factors and warned about the exact omission that occurred. JA205–211. Nothing in the order states which side's description of overlap, setoff, or judicial administration the district court accepted.

Treating incorporation as automatic would make appellate jurisdiction depend on reconstructing unstated intent. Courts would need to compare a motion, opposition, reply, proposed judgment, and abbreviated ruling to decide which propositions became findings. Rule 54(b) avoids that uncertainty by requiring the district court to express the operative determination. Asterglen's January 20 request demonstrates that the correct words were available. It cannot transform those requested words into the court's own decision after the entered order omitted them.

X. The separate judgment does not cure the omission

Asterglen also relies on the separate partial judgment. Federal Rule of Civil Procedure 58 ordinarily requires a judgment to be stated in a separate document. Compliance clarifies entry and the timing of post-judgment acts. It does not eliminate Rule 54(b)'s additional prerequisite when the judgment addresses fewer than all claims.

The February 4 judgment identifies the parties, enters judgment for Copper on Count I, dismisses that count with prejudice, and states that the remaining claims continue. JA220–221. Those provisions define the scope of the disposition. The document explicitly adds no findings or determinations to the prior orders. It therefore cannot be read to contain a conclusion that it affirmatively disclaims supplying.

Our unpublished decision in *McPherson v. Patton*, No. 23-1938, slip op. at 4–7 (4th Cir. Oct. 15, 2024), is not binding, but its reasoning addresses a materially similar omission. A grant of a Rule 54(b) motion followed by a partial judgment did not create finality when the express no-just-reason determination was absent. That reasoning follows the rule's text and *Kinsale*'s two-step structure. The documents here present the same jurisdictional defect, notwithstanding differences in the underlying claims.

XI. Consequences of the jurisdictional defect

Because the February 4 papers do not satisfy Rule 54(b), Count I's disposition remains nonfinal while Count II and the counterclaim are unresolved. Section 1291 therefore does not authorize this appeal. Docketing and timely notice cannot cure the missing final decision. Nor does another statute apply: the case includes no appealable injunction order under § 1292(a)(1), no permitted interlocutory question under § 1292(b), and no asserted collateral order.

Our remedy is limited. We dismiss the appeal and remand the matter for further district-court proceedings. We do not decide whether the January 12 order correctly interpreted Section 9.2, whether disputed facts precluded summary judgment, or whether the cure evidence defeated Asterglen's excuse theory. We also do not decide whether a supported certification could be entered on a later request or different record.

We do not vacate the January 12 partial-summary-judgment order. A jurisdictional dismissal is not a merits reversal. The order remains in the district case, subject to the district court's authority while unresolved claims continue. This result parallels *Kinsale*, which dismissed and remanded without disturbing the underlying partial ruling. 31 F.4th at 876. The district court may proceed within its lawful discretion; we direct no particular outcome below.

XII. Disposition

The district court ultimately disposed of Count I, but it did not expressly determine that there was no just reason for delay. Its bare grant of Asterglen's Rule 54(b) motion and its direction to enter a separate partial judgment do not satisfy the omitted condition. The separate judgment likewise contains no such determination. Because Count II and Copper's amended counterclaim remained pending through entry of this judgment, the action had not otherwise reached finality.

We accordingly DISMISS this appeal for lack of appellate jurisdiction and REMAND the matter to the United States District Court for the Northern District of West Virginia. We do not reach the contract merits. We do not affirm, reverse, or vacate the January 12, 2026 partial-summary-judgment order. We express no view on the proper resolution of the claims still pending or on any later request for certification.

The judgment entered with this opinion directs that each side bear its own appellate costs under Federal Rule of Appellate Procedure 39(a)(1). The Clerk shall serve the opinion and judgment under Federal Rule of Appellate Procedure 36. Any rehearing petition and issuance of mandate are governed by the applicable rules and later docket events.

APPEAL DISMISSED AND MATTER REMANDED.